

ACKNOWLEDGEMENT AND DIRECTION

TO: Nancy Houle
{insert lawyer's name}

AND TO: DAVIDSON HOULE ALLEN LLP

RE: By-Law No. 5, as attached
{insert brief description of instrument(s)}

This will confirm that:

- I/we have reviewed the information set out below, and that this information is accurate;
- You are authorized and directed to register electronically on my behalf the document(s) described in this Acknowledgement and Direction as well as any other document(s) required to complete the registration of the instrument(s) described above;
- The effect of the electronic documents described in this Acknowledgement and Direction has been fully explained to me/us and I/we understand that I/we are parties to and bound by the terms and provisions of these electronic document(s) to the same extent as if I/we had signed these documents; and
- I/we are in fact parties named in the electronic documents described in this Acknowledgement and Direction and I/we have not misrepresented our identities to you.

PROPERTIES

PIN: 15276-0001 to 15276-0079

Description: All units and common elements comprising the property included in
Carleton Condominium Plan No. 276
City of Ottawa
Land Titles Division of Ottawa-Carleton (No. 4)

Address: Ottawa

APPLICANT(S)

Name: CARLETON CONDOMINIUM CORPORATION NO. 276

Capacity: Authorized Officer

Dated this 28 day of JUNE, 2021.

CARLETON CONDOMINIUM CORPORATION NO. 276

A handwritten signature in black ink, appearing to read 'Chris Dunn', is written over a horizontal line.

Print Name: CHRIS DUNN
Print Title: PRESIDENT

I have authority to bind the Corporation.

CERTIFICATE IN RESPECT OF A BY-LAW
(UNDER SUBSECTION 38 (1) OF ONTARIO REGULATION 49/01 AND SUBSECTION 56
(9) OF THE CONDOMINIUM ACT, 1998), AND REFERRED TO IN SUBSECTION 38(1)
of ONTARIO REGULATION 49/01)

Condominium Act, 1998

Carleton Condominium Corporation No. 276 (known as the "Corporation") certifies that:

1. The copy of By-law No. 5, attached as Schedule "A", is a true copy of the By-law.
2. The By-law was made in accordance with the *Condominium Act, 1998*.
3. The majority of the owners present or represented by proxy at a meeting of owners have voted in favour of confirming the by-law with or without amendment.

Dated this 28 day of JUNE, 2021.

CARLETON CONDOMINIUM CORPORATION NO. 276



Print Name: CHRIS DUNN
Print Title: PRESIDENT

I have authority to bind the Corporation.

Schedule "A"

CARLETON STANDARD CONDOMINIUM CORPORATION NO. 276

BY-LAW NO. 5

BE IT ENACTED as By-Law No. 5 (being a by-law to amend By-law No. 1) of CARLETON CONDOMINIUM CORPORATION NO. 276 (hereinafter referred to as the "Corporation") as follows:

ARTICLE I. DEFINITIONS

All words used herein which are defined in the *Condominium Act*, 1998, as amended, or any successor thereto (the "Act"), shall have ascribed to them the meanings as set out in the Act.

ARTICLE II. AMENDMENTS TO BY-LAW NO. 1 ELECTRONIC VOTING AND ATTENDANCE AT MEETINGS OF OWNERS

The Corporation's By-law No. 1 is hereby amended as follows:

1. By adding the following Article 6 (6.12) to the said By-law No. 1:

(f) Electronic Voting. At a meeting of owners, votes may be cast by electronic or telephonic means, provided the specific method of voting is determined by resolution of the Board and described in the Notice for the Meeting.

[This is in addition to an owner, or the owner's proxy, voting in person at the meeting as authorized by the Act.]

(g) Mailed Ballots. For a meeting of owners, votes may be cast (and the voting owner(s) may attend the meeting) by way of mailed ballots as may be approved either by:

- (i) Resolution of the Board;
- (ii) The Chairperson of the meeting; or
- (iii) Resolution of the meeting.

[This is in addition to an owner, or the owner's proxy, voting in person at the meeting as authorized by the Act.]

2. By adding the following Article 6 (6.12) to the said By-law No. 1:

(g) Electronic Attendance. Persons who are entitled to attend a meeting of owners may do so by such electronic, telephonic or other suitable technology as may be approved either by:

- (i) Resolution of the Board;
- (ii) The Chairperson of the meeting; or
- (iii) Resolution of the meeting.

[This is in addition to an owner, or the owner's proxy, attending the meeting in person as authorized by the Act.]

(h) The Board of Directors shall determine, in their exclusive discretion and acting reasonably, the nature of permitted attendance at any meeting of owners, including but not limited to:

- (A) virtually with no in-person attendance;
- (B) in-person exclusively with no virtual attendance;
- (C) a hybrid of (A) and (B) by holding an in-person meeting and accommodating for virtual attendance; or
- (D) any other method(s) (permitted by the Act and/or the Corporation's By-laws) by which owners are permitted to attend the particular meeting.

[For purposes of clarity, if the board determines that a meeting shall proceed solely as a virtual meeting, owners will not be permitted to attend in person. Similarly, if the Board decides to hold a meeting in-person, an owner will only be permitted to attend virtually if the Board determines that option (C) – the hybrid approach – set out above will be implemented for the particular meeting.]

**ARTICLE III.
MISCELLANEOUS**

- (1) Invalidity: The invalidity of any part of this by-law shall not impair or affect in any manner the validity and enforceability or effect of the balance thereof.
- (2) Waiver: No restriction, condition, obligation or provision contained in this by-law shall be deemed to have been abrogated or waived by reason of any failure to enforce the same irrespective of the number of violations or breaches thereof which may occur.
- (3) Headings: The headings in the body of this by-law form no part thereof but shall be deemed to be inserted for convenience only.
- (4) Alterations: This by-law or any part thereof may be amended or repealed by a by-law passed in accordance with the provisions of the Act, and the Declaration.

- (5) Preparation: This document was prepared in the year 2021 by Davidson Houle Allen LLP in conjunction with the corporation.

The foregoing by-law is hereby passed by the Directors and confirmed by the owners pursuant to the *Condominium Act*, 1998 of Ontario.

DATED this 16th day of June, 2021.

CARLETON CONDOMINIUM CORPORATION NO. 276

A handwritten signature in black ink, appearing to read "CHRIS DUNN", is written over a horizontal line.

Print Name: CHRIS DUNN
Print Title: PRESIDENT

I have authority to bind the Corporation.